

**PLACER COUNTY SUPERIOR COURT
THURSDAY, CIVIL LAW AND MOTION
DEPARTMENT 3
THE HONORABLE MICHAEL W. JONES
TENTATIVE RULINGS FOR JUNE 18, 2026, AT 8:30 A.M.**

These are the tentative rulings for the **THURSDAY, JUNE 18, 2026, at 8:30 A.M.**, civil law and motion calendar. The tentative ruling will be the court's final ruling unless notice of appearance and request for oral argument are given to all parties and the court by **4:00 p.m., WEDNESDAY, JUNE 17, 2026**. Notice of request for argument to the court must be made by calling (916) 408-6481. Requests for oral argument made by any other method will not be accepted. Prevailing parties are required to submit orders after hearing to the court within 10 court days of the scheduled hearing date and approval as to form by opposing counsel. Court reporters are not provided by the court. Parties may provide a court reporter at their own expense.

NOTE: REMOTE APPEARANCES ARE STRONGLY ENCOURAGED FOR CIVIL LAW AND MOTION MATTERS. (PLACER COURT LOCAL RULE 10.24.) More information is available at the court's website: www.placer.courts.ca.gov.

Except as otherwise noted, these tentative rulings are issued by **THE HONORABLE MICHAEL W. JONES**. If oral argument is requested, it shall be heard at **8:30 a.m.** in **DEPARTMENT 3** located at the Historic Auburn Courthouse, 101 Maple Street, Auburn, California.

1. M-CV-0057364 ALLIANCE CREDIT SERVICES v. BROWN, ALFRED

Plaintiff's Motion for Issuance of Earnings Withholding Order Against Earnings of Judgment Debtor's Spouse and Order to Add Non-Debtors Spouse's Name to Abstract of Judgment

Plaintiff moves for the court to add defendant Alfred Brown's wife, Ying W Brown, to the abstract of judgment and thereafter issue an earnings withholding order pursuant to Code of Civil Procedure section 706.109.

An earnings withholding order may be issued within 180 days after a writ of execution has been issued to the county where the judgment debtor's employer is to be served. (Code Civ. Proc., §§ 699.540, 706.102.)

Here, the writ of execution was issued in Placer County on February 16, 2022, and returned to the court on August 15, 2022. Plaintiff's motion for an earnings

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withholding order was filed on May 27, 2026, which is more than 180 days after the writ of execution was issued in Placer County.

Accordingly, plaintiff's motion is denied because it was not timely brought.

2. M-CV-0084690 NAVY FEDERAL CREDIT UNION v. REITZ, CELESTE

Plaintiff's Motion to Set Aside Notice of Settlement and Restore Case to Active Status

Plaintiff moves to set aside the notice of settlement filed with the court on April 12, 2024, and restore the case to active status. The court previously denied plaintiff's motion on April 10, 2025, because plaintiff did not attach the parties settlement agreement for the court's consideration nor provide sufficient legal authority for the court to set aside the notice of settlement.

Plaintiff's moving papers, and declaration filed in support of the papers, contends the parties reached a settlement agreement and that defendant breached the settlement agreement such that the court should set aside the notice of settlement. However, the papers and declaration also contend no settlement agreement was executed. The court is unable to reconcile these conflicting points. Additionally, the court is unable to determine whether defendant breached any agreement reached between the parties as plaintiff again did not attach an agreement.

Plaintiff also points the court to California Rules of Court, Rule 3.1385, subdivision (b), which plaintiff contends "provides that if a conditional settlement is not completed as agreed, the plaintiff must promptly notify the court. In such event, the court may restore the matter to active status to proceed to trial or other resolution." (Plaintiff's Motion to Vacate Notice of Conditional Settlement, 1:18–20.) That reading is incorrect. California Rules of Court, Rule 3.1385, subdivision (b) provides in full

Except as provided in (c) or (d), each plaintiff or other party seeking affirmative relief must serve and file a request for dismissal of the entire case within 45 days after the date of settlement of the case. If the plaintiff or other party required to serve and file the request for dismissal does not do so, the court must dismiss the entire case 45 days after it receives notice of settlement unless good cause is shown why the case should not be dismissed. (Cal. Rules of Court, rule 3.1385, subd. (b).)

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Nowhere in the Rule of Court does it require a party to notify the court about a conditional settlement not completed as agreed. And, again, it is unclear how defendant could not complete an agreement if, as plaintiff argues, one was never executed.

Accordingly, plaintiff's motion is denied without prejudice.

3. M-CV-0087130 WELLS FARGO BANK v. SEGON, JOSEPH

Plaintiff's Motion for Judgment on the Pleadings and of Nonappearance

Request for Judicial Notice

Plaintiff's request for judicial notice is granted.

Ruling on Motion

Plaintiff's motion for judgment on the pleadings is granted.

The court may grant a motion for judgment on the pleadings in favor of a plaintiff where the complaint states facts sufficient to constitute a cause of action, and the answer does not state facts sufficient to constitute a defense to the complaint. (Code Civ. Proc., § 438, subd. (c)(1)(A).) The grounds for the motion must appear on the face of the challenged pleading or based on facts which the court may judicially notice. (*Id.* subd. (d).) The court may take judicial notice of a defendant's uncontroverted admissions in responses to request for admissions or interrogatories. (*Arce v. Kaiser Foundation Health Plan, Inc.* (2010) 181 Cal.App.4th 471, 485; *see also Evans v. California Trailer Court, Inc.* (1994) 28 Cal.App.4th 540, 549, disapproved on other grounds in *Black Sky Capital LLC v. Cobb* (2019) 7 Cal.5th 156.)

Pursuant to the court's order, defendant is deemed to have admitted all operative facts alleged in the complaint. Judgment on the pleadings is appropriate in these circumstances. (Code Civ. Proc., § 438, subd. (c)(1)(A).) Judgment shall be entered in favor of plaintiff and against defendant in the principal amount of \$15,343.85, plus court costs in the amount of \$565 and attorney's fees in the amount of \$800, for a total judgment of \$16,708.85.

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4. M-CV-0090473 LVNV FUNDING v. UREN, BRITTANY

The motion hearing – opposition is dropped from calendar as no moving papers were filed with the court.

5. M-CV-0093884 THE NORTH RIVER INS. v. BACKYARD UNLIMITED

Plaintiff's (1) Motion to Deposit Bond Funds with Court; (2) For Exoneration of Bond; (3) For Award of Attorney's Fees

Plaintiff The North River Insurance Company seeks to deposit with the court \$25,000 and be discharged from liability pursuant to Code of Civil Procedure section 386 et seq. The court will discharge a plaintiff stakeholder from liability who claims no interest in the res when “double or multiple claims are made, or may be made, by two or more persons.” (Code Civ. Proc., § 386, subd. (b).) A surety may interplead the bond funds to minimize the surety's risk. (*Karton v. Ari Design & Construction Inc.* (2021) 61 Cal.App.5th 734, 751–54.)

The North River Insurance Company presents evidence that it holds a surety bond naming Backyard Unlimited Construction Inc. for a bond limit of \$25,000. The North River Insurance Company presents evidence it has received competing claims in excess of the bond amount from defendants, Brian Helmowski, Eltra Sheppard-Foreman, John Heathcliff and CRC Builders Inc. The North River Insurance Company subsequently dismissed defendant John Heathcliff from the action. No parties opposed the motion.

The motion to deposit bond and for exoneration of bond is granted.

As to attorney's fees, the court has the discretion to award reasonable attorney fees “from the amount in dispute which has been deposited with the court.” (Code Civ. Proc., § 386.6, subd. (a).) The North River Insurance Company must deposit the funds with the court prior to obtaining an attorney's fees award from it. (*Wells Fargo Bank v. Zinnel* (2004) 125 Cal.App.4th 393, 400–03.) A review of the court's file reveals The North River Insurance Company has not yet deposited bond funds with the court. As such, the request for attorney's fees is denied without prejudice.

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6. M-CV-0096406 AJIT KUMAR, TRUSTEE v. MENDOZA, LAWRENCE

This tentative ruling is issued by the **Honorable Michael A. Jacques**. If oral argument is requested, it shall be heard on June 18, 2026, at 8:30 a.m. in Department 40.

Defendant's Motion to Set Aside Judgment, Recall or Quash Writ of Possession, and Reset Trial Date

Defendant moves to set aside the judgment entered against him on May 19, 2026, after he did not appear for the court trial. Code of Civil Procedure section 473, subdivision (b) provides "the court may . . . relieve a party . . . from a judgment . . . taken against the party through the party's mistake, inadvertence, surprise, or excusable neglect." (Code Civ. Proc., § 473, subd. (b).) Defendant, as the moving party, bears the burden to show good cause entitling him to relief. (*Davis v. Thayer* (1980) 113 Cal.App.3d 892, 904.)

Here, defendant has not met his burden. Defendant's declaration does not establish he exercised reasonable diligence, explain whether his medical conditions were severe enough to limit his ability to check his mail or attend and participate at trial or that all of his time was devoted to his personal and familial affairs that he was not able to check his mail or attend and participate at trial.

Accordingly, defendant's motion is denied.

7. M-CV-96410 LHE WOODCREEK v. TORRANCE, DEBORAH

The demurrer is continued to **June 25, 2026, at 8:30 a.m. in Department 3.**

8. S-CV-0040220 MURPHY, ANNA v. SMITH, CHARLEY

Defendant's Motion for Writ of Possession for Real Property Located at 6010 and 6020 McCourtney Road, Lincoln, CA

Defendant moves for the court to issue a writ of possession for real property pursuant to Code of Civil Procedure section 715.010.

Code of Civil Procedure section 715.010, subdivision (a) provides: "A judgment for possession of real property may be enforced by a writ of possession of real property issued pursuant to Section 712.010." (Code Civ. Proc., § 715.010, subd. (a).) Here,

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defendant does not establish the court entered a judgment for possession of real property. Nor has a review of the court record revealed such a judgment.

Accordingly, defendant's motion is denied.

Plaintiff's request for sanctions is denied.

Plaintiff's Assertion of Statutory Right of Redemption and Declared Homestead Rights

Preliminary Matters

Plaintiff's request for judicial notice is granted.

Ruling on Motion

Plaintiff argues the statutory right of redemption has not passed because it runs from one year from the date of the sale rather than three months.

Code of Civil Procedure section 720.030 provides the two-track deadline for the redemption period: "(a) Three months after the date of sale if the proceeds of the sale are sufficient to satisfy the secured indebtedness with interest and costs of action and of sale. (b) One year after the date of sale if the proceeds of the sale are not sufficient to satisfy the secured indebtedness with interest and costs of action and of sale." (Code Civ. Proc., § 720.030, subds. (a)–(b).)

Here, the sale of the property occurred on November 13, 2025. Plaintiff, in her motion, concedes the sale produced surplus funds from the amount on the writ of sale. Therefore, the sale proceeds sufficiently satisfied the secured indebtedness with interest and costs of action and of sale such that the redemption period is three months from the sale of the property. In other words, the redemption period ended on February 13, 2026.

Plaintiff also argues she is entitled to the surplus funds pursuant to Code of Civil Procedure section 704.850. However, that section only applies if the homestead exemption applies. The court explicitly found the homestead exemption does apply on April 28, 2025. Nor does the attached accounting from plaintiff's federal case state the homestead exemption applies.

Accordingly, plaintiff's motion is denied in its entirety.

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9. S-CV-0051422 EXCLUSIVE AUTO GROUP v. GENERAL MOTORS

At the direction of the Presiding Judge, the motion for summary judgment is continued to be heard by the **Honorable Trisha J. Hirashima** on **August 18, 2026, at 8:30 a.m. in Department 32.**

10. S-CV-0052516 FISHER, CHANELL v. EFREN COTA

The mediation status conference is dropped from calendar in light of the parties' joint declaration filed with the court on June 11, 2026, that includes the information required by the court.

11. S-CV-0053444 BERGFALK, BRIAN v. MLV HOLDINGS

Defendant's Motion for Summary Judgment or, in the Alternative, Summary Adjudication

Preliminary Matters

Defendant's request for judicial notice is granted.

Defendant's objections 1–4 are overruled. Defendant's objection 5 is sustained because the declaration is neither signed nor dated.

Ruling on Motion

Defendant moves for summary judgment or, in the alternative, summary adjudication as to plaintiff's complaint. A motion for summary judgment may be granted if "all the papers submitted show that there is no triable issue as to any material fact and the moving party is entitled to a judgment as a matter of law." (Code Civ. Proc. § 437c, subd. (c).) This is compared to summary adjudication that requires a showing that there is no merit to one or more of the causes of action. (*Id.* at § 437c, subd. (f)(1).) A motion for summary adjudication proceeds "in all procedural respects as a motion for summary judgment." (*Id.* at § 437c, subd. (f)(2).) In reviewing either motion, the trial court must view the supporting evidence, and inferences reasonably drawn from such evidence, in the light most favorable to the opposing party. (*Aguilar v. Atlantic Richfield Company* (2001) 25 Cal.4th 826, 843.) Defendant, as the moving party, bears the initial burden of establishing that "one or more elements of the cause of action, even if not separately pleaded, cannot be established, or that there is a complete defense to the cause of action." (Code Civ. Proc. § 473c, subd. (p)(2).)

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Once that burden is met, the burden shifts to the “plaintiff to show that a triable issue of one or more material facts exists as to the cause of action or a defense.” (*Ibid.*) Pursuant to the “golden rule” of summary judgments, “if it is not set forth in the separate statement, it does not exist.” (*California-American Water Co. v. Marina Coast Water Dist.* (2022) 86 Cal.App.5th 1272, 1296.)

Plaintiff’s complaint alleges two causes of action against defendant: (1) general negligence and (2) premises liability with counts of negligence and willful failure to warn.

To state a claim for negligence and premises liability, plaintiff must establish: (1) duty, (2) breach, (3) proximate cause, and (4) damages. (*Kesner v. Superior Court* (2016) 1 Cal.5th 1132, 1142.)

Defendant argues express assumption of the risk applies such that it did not owe a duty to plaintiff. “[F]or a release of liability to be held enforceable against a plaintiff, it ‘must be clear, unambiguous and explicit in expressing the intent of the parties’ [Citation.]; the act of negligence that results in injury to the releasee must be reasonably related to the object or purpose for which the release is given [Citation.]; and the release cannot contravene public policy [Citation.].” (*Sweat v. Big Time Auto Racing, Inc.* (2004) 117 Cal.App.4th 1301, 1304–5.) In the summary judgment context, as here, “the defendant bears the burden of establishing the validity of a release ‘as applied to the case at hand.’” (*Jimenez v. 24 Hour Fitness USA, Inc.* (2015) 237 Cal.App.4th 546, 554.) Importantly, “a release cannot absolve a party from liability for gross negligence.” (*Ibid.*) So, a release that attempts to absolve a party from liability for both negligence and gross negligence is enforceable as to negligence but is unenforceable as a matter of public policy as to gross negligence. (*Rosencrans v. Dover Images, Ltd.* (2011) 192 Cal.App.4th 1072, 1081.)

Gross negligence is conduct by the defendant that involves either “want of even scant care or an extreme departure from the ordinary standard of care.” (*Chavez v. 24 Hour Fitness USA, Inc.* (2015) 238 Cal.App.4th 632, 640.) In other words, “gross negligence connotes such a lack of care as may be presumed to indicate a passive and indifferent attitude toward results.” (*Ibid.*) The difference between negligence and gross negligence is “only in degree, and not in kind.” (*Anderson v. Fitness Internat., LLC* (2016) 4 Cal.App.5th 867, 881.)

Courts reviewing summary judgment motions based on the absence of a triable issue of fact as to gross negligence must resolve every reasonable doubt in favor of the plaintiffs. (*Jimenez v. 24 Hour Fitness USA, Inc.* (2015) 237 Cal.App.4th 546, 555.)

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Although generally whether a defendant's actions constitute gross negligence is a question of fact for the jury, it may be resolved at the summary judgment stage. (*Id.* at p. 555.)

Here, plaintiff signed a membership agreement with defendant that contained the following release of liability:

... using this studio owned by MLV Roseville LLV D/B/A/ StretchLab Roseville . . . involves the risk of injury to you . . . and the risks range from minor injuries to major injuries, such as catastrophic injuries including death. . . . You understand and voluntarily accept this risk and release MLV Roseville LLC . . . from all liability for any injury, including, without limitation, personal, bodily, or mental injury . . . resulting from your use of StretchLab Roseville, including any injury relating to the ordinary or gross negligence, actual or passive, of the releases . . . even if the releasees were negligent.

(UMF No. 43.)

Defendant meets its initial burden that express assumption of the risk applies such that it did not owe a duty to plaintiff because the release is clear, unambiguous, and explicit in the intent of the parties to release minor to major injuries resulting from using defendant's facilities; the alleged negligent act of defendant's employee using a percussion massage gun on plaintiff's ankle bone is reasonably related to the release of liability for using defendant's premises; and although the release does seek to improperly waive gross negligence, it nonetheless does not contravene public policy as to claims for general negligence. (UMF Nos. 36–43.) Additionally, defendant meets its burden to establish its actions do not constitute gross negligence. (UMF Nos. 6, 8–9, 11–26.)

The burden therefore shifts to plaintiff to raise a triable issue of material fact that defendant's actions constituted gross negligence such that the release does not absolve defendant's duty to plaintiff or that the release is otherwise invalid. (*Jimenez v. 24 Hour Fitness USA, Inc.* (2015) 237 Cal.App.4th 546, 555.)

Here, plaintiff does not meet its burden to establish a triable issue of material fact that defendant actions constitute gross negligence or that the release is invalid. Therefore, the motion for summary adjudication is granted as to the first cause of action for general negligence.

Separately, the motion for summary adjudication is also granted as to the second cause of action for premises liability pursuant to the same analysis because the

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elements for the two causes of action are the same and plaintiff does not raise any triable issues of material fact that defendant's action constitute gross negligence or that the release is invalid.

Accordingly, since the motion for summary adjudication is granted as to both causes of action, defendant's motion for summary judgment is granted.

12. S-CV-0054358 KOUBA, NICHOLAS v. JOHN MOURIER CONST.

Plaintiffs' Motion for Leave to File Doe Amendment to Complaint

Preliminary Matters

Plaintiffs' requests for judicial notice are granted.

Ruling on Motion

Plaintiffs' unopposed motion for leave to file Doe amendments to complaint is granted. (Code Civ. Proc., §§ 473, subd. (a)(1), 474, 576.) Plaintiffs shall file and serve the Doe amendments on or before **June 29, 2026**.

13. S-CV-0055102 LEMKE, DORA v. BARNETT, TERRY

The motion to be relieved as counsel is dropped from calendar as no moving papers were filed with the court.

14. S-CV-0055122 AYAR, SOFIA v. AMIRI, TAMIM

The motion for stay is dropped from calendar as no moving papers were filed with the court.

15. S-CV-0055350 MARTIN, MAZIE v. TWIN ROCKS ESTATE VINEYARD

The motion for preliminary approval is dropped from calendar as no moving papers were filed with the court.

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16. S-CV-0055740 LEGRAND, BRIAN v. LEGRAND, KAREN

Plaintiff/Cross-Defendant's Demurrer to Defendants/Cross-Complainants' Cross-Complaint

Plaintiff/Cross-Defendant Brian LeGrand demurs to defendants/cross-complainants amended cross-complaint filed on December 5, 2025. Notably, defendants/cross-complainants filed a second amended cross-complaint on December 31, 2025. The second amended cross-complaint, however, was filed without leave of court in violation of Code of Civil Procedure section 472. The court, on its own motion, strikes the second amended cross-complaint from the record pursuant to Code of Civil Procedure section 436, subdivision (b).

The court continues this matter to July 9, 2026, at 8:30 a.m. in Department 3. The parties are ordered to meet and confer in good faith prior to the hearing, which includes acting within the spirit and meaning of the California Attorney Guidelines of Civility and Professionalism, to discuss whether the parties stipulate to defendants/cross-complainants having leave to file a second amended cross-complaint in light of defendants/cross-complainants tacit admission, from their improperly filed second amended cross-complaint, their first amended cross-complaint was deficient.

The parties shall file a joint declaration on or before July 2, 2026, that outlines the parties meet and confer efforts, whether the parties stipulate to defendants/cross-complainants filing a second amended cross-complaint, and whether the proposed second amended cross-complaint remedies the deficiencies raised by plaintiff/cross-defendant in their reply papers. If the parties timely file a joint declaration that includes the required information and stipulates to defendants/cross-complainants filing a second amended cross-complaint, the hearing may be dropped from calendar.

If oral argument is requested, remote appearance is not authorized. The parties shall be prepared to answer questions from the court addressing the February 19 good faith meet and confer process in light of both a First and Second Amended Cross-Complaint on file with the court.

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17. S-CV-0056872 DOWLING, TERESA v. DEP'T OF MOTOR VEHICLES

Petitioner's Petition for Writ of Mandate

Petitioner's petition for writ of mandate is continued to **Tuesday, August 4, 2026, at 8:30 a.m. in Department 32** to be heard by the **Honorable Trisha J. Hirashima**. No responsive pleading has yet been filed.

18. S-CV-0057018 KING, TED v. TARVER, RUSSELL

At the direction of the Presiding Judge, the motion to vacate judgment is continued to be heard by the **Honorable Trisha J. Hirashima** on **August 11, 2026, at 8:30 a.m. in Department 42**.